



ASFALISTIKI

PUBLIC LIABILITY POLICY

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Contents and Policy Guide

Certain covers that are contained in this Policy may not apply in your case. Those that apply are specified in the Schedule of the Policy and are determined according to the covers you have selected.

	Page No.
A. Operative Clause	3
B. Definitions	4
C. Insurance Cover	4
D. Limits of Liability	5
E. Exclusions	5
F. Conditions applicable to all sections of the Policy	7
G. Conditions applicable in the event of a Claim	8
H. Endorsements	9
I. Guidelines when making a claim	10
J. Our service	10



ASFALISTIKI

PUBLIC LIABILITY POLICY

A. OPERATIVE CLAUSE

The Proposal is the basis of and forms part of the contract between the Company and the Policyholder.

The Policy is evidence of the contract.

The Policy, the Schedule and any Endorsement are to be read as one document and any word or expression to which a specific meaning has been attributed, shall have the same meaning wherever it appears.

We will provide the insurance cover described in the Policy in accordance with the details shown in the Schedule during any Period of Insurance.

The conditions, which appear in the Policy or in any Endorsement issued by the Company are part of the contract and must be complied with. They are conditions precedent to the right to recover from the Company.

The Policy, the Schedule and any Endorsement(s) issued contain the full particulars of your cover. Please make sure that they are fully understood and the particulars contained in the Schedule are correct as they purport to protect you. In the event that you feel that those documents were not issued in accordance with your instructions or they do not meet your requirements, please return them to us within 14 days from their receipt.


Signature and title of the person
on behalf of CNP ASFALISTIKI





B. DEFINITIONS

1. **Insured**
The person named in the Schedule of the Policy.
2. **Excess**
The first part of any claim, which is not covered by the Policy and is born by the Insured.
3. **Geographical Area**
Republic of Cyprus, unless otherwise stated in the Schedule or in an Endorsement.
4. **Type of Business**
The type of business, professional activity or use stated in the Schedule.
5. **Company**
CNP Asfalistiki Limited
6. **Legal Expenses**
Legal costs and expenses that any claimant may be entitled to recover from the Insured and any other costs and expenses which have been incurred with the written consent of the Company in connection with the defence, investigation or settlement of any claim.
7. **Period of Insurance**
The period shown in the Schedule and any further period for which the Insured shall pay or agrees to pay and the Company agrees to accept a renewal premium.
8. **Occurrence**
Every separate occurrence/event or series of occurrences/events consequent on or attributable to the same proximate cause or original cause and as a result of which a claim may be submitted under the policy.
9. **Endorsement**
Any amendment made to the Policy and issued by the Company.
10. **Proposal**
The Proposal Form and any other information provided on behalf of the Insured.
11. **Bodily Injury**
Includes death and illness of any person.
12. **Situation of Risk**
The area in which the Type of Business is carried out at the address stated in the Schedule.

Any reference to the male gender shall include the female gender and vice versa.

C. INSURANCE COVER

The Company will indemnify the Insured against all sums, which the Insured shall become legally liable to pay as compensation in respect of:

- a. accidental Bodily Injury to any person,
- b. accidental loss of or damage to any property,

occurring during the Period of Insurance in connection with the Type of Business and occurs at the Situation of Risk specified in the Schedule.

The Company will also pay Legal Expenses.



D. LIMITS OF LIABILITY

The liability of the Company for the payment of any compensation and Legal Expenses as referred to above, will not exceed the Limits of Liability stated in Schedule for any one Occurrence or for any Period of Insurance.

E. EXCLUSIONS

The Company shall not be liable in respect of:

1. Bodily injury to any person arising out of and in the course of the employment of such person by the Insured under a contract of service or apprenticeship.
2. Loss of or damage to property belonging to or in the charge or control of the Insured or any of employee of the Insured, except of clothing and personal effects of the Employees of the Insured.
3. Bodily Injury, loss or damage caused by or arising out of:
 - a. the ownership, possession or use by or on behalf of the Insured of
 - i. any mechanically propelled vehicle (or trailer attached thereto) whilst on any road within the meaning of the Motor Vehicles (Third Party Insurance) Law of 2000 and 2003 or any other law substituting or amending the said law,
 - ii. any mechanically propelled vehicle (or trailer attached thereto) if the liability in respect thereof is insured by or would but for the existence of this Policy be insured by any other Policy,
 - iii. any ship, vessel or aircraft,
 - iv. the ownership or use of any dock, jetty, pier, sea wall or similar waterside structure.
 - b. any lifting appliance belonging or hired to the Insured or for the maintenance of which the Insured is responsible
 - c. any goods (including Food and Drinks) sold, supplied, repaired, altered, treated or tested by the Insured and not in the Insured's charge or control at the time such Bodily Injury, loss or damage occurs.
4. The making, replacement or reinstatement of goods sold or supplied by the Insured or defective work executed by the Insured.
5. Therapeutic, remedial, professional or other advice, treatment or service given, administered or omitted by the Insured.
6. Liability assumed by the Insured under a contract or agreement unless such liability would have been attributable to the Insured irrespective of the existence of such contract or agreement.
7. Bodily Injury loss or damage caused by or arising from vibration or the removal or weakening of or interference with support to land buildings or any other property.
8. Fines, penalties, punitive or exemplary damages.
9. Liability for:
 - a. Bodily Injury, loss or damage, loss of use of property or other financial loss directly or indirectly arising out of the discharge, dispersal, release or escape of pollutants,
 - b. the cost of removing, nullifying or cleaning up pollutants,

unless such liability is caused by a sudden and unexpected event, which takes place in its entirety at a specific time and place.



For the purpose of this exclusion, "pollutants" means any solid, liquid, gaseous or thermal substance that causes irritation or infection and, amongst others, it includes smoke, vapour, soot, fumes, acids, alkalis, chemicals substances and waste.

The term "Waste" includes material to be recycled, reconditioned or reclaimed.

10. Bodily Injury, loss or damage directly or indirectly arising out of, resulting from or in consequence of, or in any way relating to asbestos, or any materials containing asbestos in whatever form or quantity.
11. Any infringement of copyright, trade marks and trade names or registered plans.
12. Claims which are covered or should be covered under the following Insurance Policies: Directors' & Officers', Professional Indemnity, Errors & Omissions, Libel & Slander, Products' Guarantee, Products' Recall, Products' Integrity and Products' Impairment.
13. Consequential loss caused by or attributed to any one of the exclusion of the Policy.
14. The storage and transport of fireworks, ammunition, fuses cartridges and nitro-glycerine powder or any other explosives.
15. The construction and maintenance of tunnels, bridges, dams and subaqueous works.
16. The construction and maintenance of towers, steeples, chimney, shafts and buildings over 33 metres high.
17. Liability arising directly or indirectly out of, caused by or in connection with magnetic, electric or electromagnetic fields or their radiation or interaction in the form of an electromagnetic wave, howsoever caused or generated, or diminution of property value.
18. Liability directly or indirectly caused by or contributed to or arising from ionising radiation or pollution by radioactivity from any nuclear fuel or waste from the combustion of nuclear fuel. For the purpose of this exclusion, the term "combustion" shall include any process of self-ignition.
19. Bodily Injury, loss, damage, destruction, any legal liabilities, cost and expenses, including consequential loss of whatsoever nature, directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to the following, regardless of any other cause or event contributing concurrently or in any other sequence to the loss:
 - a. War, invasion, acts of foreign enemies, hostilities, or warlike operations (whether war be declared or not), civil war, rebellion, revolution, insurrection, civil commotion assuming the proportions of or amounting to an uprising, military or usurped power.
 - b. Any act of terrorism. For the purposes of the exception, an act of terrorism means an act, including but not limited to the use of force, violence, atomic/biological/chemical weapons, weapons of mass destruction, destruction, disruption or subversion of communication and information system infrastructures and/or its content thereof, sabotage or the use of any other means to cause or intended to cause harm of whatever nature including, but not limited to, nuclear radiation and/or contamination by chemical and/or biological substances and/or the threat of any of the aforementioned acts, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organization(s) or government(s) committed for political, religious, ideological, or ethnic purposes or reasons including the intention to influence any government and/or to put the public or any section of the public, in fear.
 - c. Detention, seizure or confiscation by or under the order of any government or public or local authority or any attempt thereat.



If the Company alleges that by reason of this exclusion (No. 19) any death, disability, loss, damage, destruction, legal liability, cost or expense is not covered under the Policy, the burden of proving the contrary shall be upon the Insured.

20. The storage and transport of gases and/or air under pressure in containers.

F. CONDITIONS APPLICABLE TO ALL SECTIONS OF THE POLICY

1. Duty of Care

The Insured must take all reasonable precautions to prevent Bodily Injury, loss or damage and to comply with the provisions of the law.

2. Change of Risk

No cover is provided unless the Insured prior to the occurrence of any Bodily Injury, loss or damage, has obtained the approval of the Company (which shall be signified by an Endorsement to the Policy, duly signed for and on behalf of the Company) as regards anything materially affecting the insured risk.

3. Cancellation of the Policy

The Company has the right to cancel this policy at any time by sending fifteen (15) days notice by a registered letter to the Insured at his last known address. In such a case the Company will refund to the Insured the proportionate premium paid for the unexpired part of the Period of Insurance.

The Policy may be also cancelled by the Insured at any time by giving a written notice to the Company. In such a case and provided that:

- a. no claim has been made during the current Period of Insurance, the Insured shall be entitled to the difference between the premium paid and the premium calculated at the Company's Short Premium Rates attached to the Schedule.
- b. a claim has been made during the current Period of Insurance, the Insured shall not be entitled to the return of any premium.

4. Voidable Policy

The Policy shall be rendered voidable by the Company in the event of misrepresentation, misdescription or concealment of a material fact, occurrence or event on the part of the Insured or persons acting on his behalf, which could influence the Company's decision in accepting or not of this insurance or in assessing the amount of the premium.

5. Adjustment of Premium

If the premium for this Policy has been calculated on estimates furnished by the Insured, the Insured shall keep an accurate record containing all relative particulars and shall allow the Company to inspect such record. Within one month of the expiry of each Period of Insurance, the Insured shall supply such particulars as the Company may require to enable it to calculate the adjusted premium for that Period of Insurance and the Insured shall pay additional premium or, subject to the Minimum Premium stated on the Schedule, be entitled to rebate of premium as the case may be.

6. Jurisdiction

It is agreed between the Insured and the Company that the cover provided under the Policy applies only to judgments delivered by a competent Court of the Republic of Cyprus and the term "judgment" is that given by the law and it does not include any judgments or orders (judicial or arbitration) registered in Cyprus in terms of any law, bilateral or international pact or otherwise.

7. Applicable Law

The Policy shall be governed by the legislation of the Republic of Cyprus.



8. Currency

All payments from or to the Company shall be made in the official currency of the Republic of Cyprus.

9. Complaints' Procedure

CNP ASFALISTIKI, in a continuous effort to provide improved quality services to its customers, would like to inform you of the implementation of a new Complaints Handling Process.

You can communicate a complaint to us in one of the following ways:

- A) **In writing**, c/o Complaints Management Department, by completing the relevant Complaint Form, which is available at our Head Office in Nicosia and Regional Offices and sending it to us at:
- The address shown at the back of your Insurance Policy
 - or
 - By Fax at **22 887501**
- B) **By visiting** our Complaints Management Department at our Head Offices, or at any Regional Office of your convenience.
- C) **Electronically** - through our website www.cnpasfalistiki.com, under the option "Contact us – Complaint Form".
- D) **By telephone** - you can call us on **22 887600** during the applicable working hours of the Company.

After you have successfully submitted your complaint:

- Within 2 working days from the date of submission, you will be sent a letter acknowledging receipt of your complaint and informing you that your complaint is under investigation.
- Within 15 working days thereafter, you will receive our final reply to your complaint (if that is possible), or we will inform you that our investigations have not been completed and a further extension is required. In that case, we will send you our final answer/decision in no later than 30 additional working days.

G. CONDITIONS APPLICABLE IN THE EVENT OF A CLAIM

1. Notification of a Claim

Upon the happening of any occurrence/event likely to give rise to a claim under this Policy, the Insured shall as soon as possible but not later than 30 days, notify the Company in writing and furnish such further particulars as the Company may require.

2. Written Notice

Every notice or communication to be given or made under this Policy shall be delivered in writing to the Company at the address stated in the Policy or at the Insured's address stated in the Proposal (or any other address which has been communicated in writing) as the case may be.

3. Rights of the Company

The Company is entitled to:

- a. if it considers proper, to take over and conduct in the name and on behalf of the Insured or such other person entitled to indemnity under the Policy the defence or settlement of any claim.
- b. take at its own expense, in the name and on behalf of the Insured, any proceedings it considers necessary to enforce any rights and remedies or to recover compensation or indemnity from third parties, within always the terms of the Policy.

The Insured has the duty to take such actions that the Company may reasonably demand for that purpose, irrespective as to whether such actions shall become necessary or shall be demanded before or after the payment of compensation by the Company.



- c. absolve itself from any further liability in connection with any Occurrence by the payment of the specified Limit of Indemnity in respect thereof (after deducting there from any sums already paid) or by the payment of any balance of any maximum Limit of Indemnity for any other Period of Insurance, whichever is the less, together with the amount of any Legal Expenses to the date of such payment.

4. Duties of the Insured.

- a. The Insured must not make any admission of liability, reject or negotiate on any claim without the Company's written consent.
- b. The insured must give all the information and help the Company may require to settle or defend any claim or to commence legal proceedings.
- c. The Insured must take all reasonable precautions to prevent accidents injury loss and damage and shall take all reasonable steps to observe and comply with all statutory laws, obligations and requirements.

5. Company's Liability in case of Double Insurance and Contribution

- a. If at the time the cause of action arises in relation to which a claim is made under this Policy, there is in force another policy covering the same liability or which would have covered the same liability in the absence of this Policy, the Company shall have no liability to pay or contribute any amount which is greater than its rateable proportion in relation to the claim, including Legal Expenses.
- b. The Company's rateable proportion mentioned above shall not exceed the ratio of the total amount of damages (including Legal Expenses) that corresponds to the relationship between the Limits of Indemnity which each insurance company undertakes.
- c. If the Company is compelled for any reason to pay any amount exceeding its rateable proportion as specified above, it will nonetheless retain the right to be subrogated to the Insured's rights and to demand from any other insurance company covering the same liability the amount of the difference that the other company should have contributed, which is calculated in the manner hereinabove mentioned. Under such circumstances, the Insured undertakes, if and when he is required to do so, to render any assistance towards the Company, to do whatever is reasonable expected of him and to allow the use of his name for the purpose of securing the amount of contribution of the other insurance company.

6. Limitation of Actions

All benefits or rights of the Insured or other person to whom indemnity is provided under the Policy shall be forfeited in respect of any claim which was rejected, and no legal action was instituted within 12 months from the date of such rejection

H. ENDORSEMENTS

The following Endorsements are valid only when specified in the Schedule that they are included.

PL1002: Liability for Guests Property

It is hereby declared and agreed that exclusion 2 shall not apply to any property of any guest of the Insured provided that:

- a. This policy shall not apply to liability in respect of loss or damage to property belonging or loaned or hired to the Insured.
- b. It is a condition of the Policy that:
 - i. A copy of the notice set out in Section 14 of the Hotels and Tourist Establishment Law of 1969 and any other law amending for substituting same in respect of the Hoteliers' liability and protection must be conspicuously displayed at or near the reception desk and in every room.
 - ii. The Insured shall take all reasonable measures to safeguard guests' property.



- iii. Passports and other travelling documents, money, cheques, credit cards, watches and other valuable items, will be kept in a locked safe.
- c. The Company's liability for all compensation payable in respect of loss of and damage to the property of guests of the Insured is limited to amount stated in the Schedule as the:
 - i. Limit of Indemnity in respect of the property of any one guest
 - ii. Limit of Indemnity in respect of all loss and damage occurring during any one Period of Insurance.

PL1003: Food or Drinks

It is hereby declared and agreed that in respect of Bodily Injury, loss or damage caused by or arising from any food or drinks sold or supplied by the Insured exclusion 3.c shall not apply.

PL1004: Lifts or escalators

It is hereby declared and agreed that in respect of Bodily Injury, loss or damage caused by or arising from any lifts and escalators exclusion 3.b shall not apply.

It is a condition of the Policy that the Insured shall comply with the provisions of any law or regulation relating to the inspection and maintenance of the above type of equipment and shall remedy immediately any defects and shall comply with any recommendations made in any inspection reports issued under such law or regulation.

PL1005: Fire or explosion

It is hereby declared and agreed that the Policy is extended to cover fire or explosion causing accidental loss or damage to property adjoining the Situation of Risk.



I. GUIDELINES WHEN MAKING A CLAIM

What the Insured should do

1. Check that the claim is covered by the Policy. The Policy contains details of what is insured, what is excluded and guidelines for the submission of claims.

To check that you have a valid claim

- a. Establish the cause of the Bodily Injury or loss or damage and refer to the relevant sections of your Policy to ensure that this cause is covered.
 - b. Ensure that the cause of the claim is not excluded.
 - c. Check that you have complied with all the conditions of your Policy.
 - d. Read the Conditions applicable when a claim is made.
2. Immediately notify the Company about the occurrence/event in writing and complete a Claim Form, which you can obtain from the Company or your Agent, within 30 days from the date you become aware of the occurrence/event or within any further period as the Company may in writing allow.

What the Company will do:

The Company at its own discretion will arrange for someone to investigate the claim and will let you know whether any more information is required.

J. OUR SERVICE

CNP Asfalistiki aims to provide you with the insurance cover you require and offer you comprehensive service, especially in the settlement of claims.

However, we accept that things may sometimes go wrong in the process of handling so many claims every day, and we would rather be told about the occasional difficulty that you may have instead of leaving a customer dissatisfied.

If you feel that the level of service we are offering to you falls short of your expectations, please get in touch with:

The General Manager
CNP Asfalistiki Limited
17 Akropoleos Avenue,
2006 Strovolos, Nicosia
or
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